IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TEXAS
EL PASO DIVISION

Securities and Exchange Commission, Plaintiff, vs. Aras Investment Business Group S.A.P.I. de C.V., Armando Gutierrez Rosas, Maria de Lourdes Tolentino Roque, Diayanira Rendon Trejo, Efren Norberto Quiroz Gardea and Luis Ricardo Quiroz Gardea, Defendants.	Case No. 3:23-CV-353-KC

FINAL JUDGMENT AS TO DEFENDANTS ARAS INVESTMENT BUSINESS GROUP S.A.P.I. DE C.V., ARMANDO GUTIERREZ ROSAS, MARIA DE LOURDES TOLENTINO ROQUE, DIAYANIRA RENDON TREJO, EFREN NORBERTO QUIROZ GARDEA, AND LUIS RICARDO QUIROZ GARDEA

This Court previously has entered Judgments as to Defendants Maria de Lourdes Tolentino Roque (" Tolentino"), Diayanira Rendon Trejo (" Rendon"), Efren Norberto Quiroz Gardea (" Efren Quiroz"), and Luis Ricardo Quiroz Gardea (" Luis Quiroz"), Dkt. Nos. 7-10, and has granted Plaintiff Securities and Exchange Commission's Motion for Default Judgment as to Liability against Defendants Aras Investment Business Group S.A.P.I. de C.V. (" Aras") and Armando Gutierrez Rosas (" Gutierrez"), Dkt. No. 37. On June 18, 2026, United States Magistrate Judge Anne T. Berton filed a Report and Recommendation (" Report and Recommendation") recommending that the SEC' s Motion for Remedies and Entry of Final Judgment Against Defendants Aras Investment Business Group S.A.P.I. de C.V., Armando Gutierrez Rosas, Maria de Lourdes Tolentino Roque, Diayanira Rendon Trejo, Efren Norberto Quiroz Gardea, and Luis Ricardo Quiroz Gardea (collectively, " Defendants") (" Motion for Remedies and Entry of Final Judgment"), Dkt. No. 39, be granted. Dkt. No. 41. On July 8, 2026, the Court granted the " Motion for Remedies and Entry of Final Judgment," and adopted the Report and Recommendation's findings, *id.*, in its entirety. Dkt. No. 42. Accordingly, the Court orders as follows:

I.

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED that Defendants are permanently restrained and enjoined from violating, directly or indirectly, Section 10(b) of the Securities Exchange Act of 1934 (the " Exchange Act") [15 U.S.C. § 78j(b)] and Rule 10b-5 promulgated thereunder [17 C.F.R. § 240.10b-5], by using any means or instrumentality of interstate commerce, or of the mails, or of any facility of any national securities exchange, in connection with the purchase or sale of any security:

(a) to employ any device, scheme, or artifice to defraud;

(b) to make any untrue statement of a material fact or to omit to state a material fact necessary in order to make the statements made, in the light of the circumstances under which they were made, not misleading; or

(c) to engage in any act, practice, or course of business which operates or would operate as a fraud or deceit upon any person.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also binds the following who receive actual notice of this Final Judgment by personal service or otherwise: (a) Defendants' officers, agents, servants, employees, and attorneys; and (b) other persons in active concert or participation with Defendants or with anyone described in (a).

II.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that Defendants are permanently restrained and enjoined from violating Section 17(a) of the Securities Act of 1933 (the " Securities Act") [15 U.S.C. § 77q(a)] in the offer or sale of any security by the use of any means or instruments of transportation or communication in interstate commerce or by use of the mails, directly or indirectly:

(a) to employ any device, scheme, or artifice to defraud;

(b) to obtain money or property by means of any untrue statement of a material fact or any omission of a material fact necessary in order to make the statements made, in light of the circumstances under which they were made, not misleading; or

(c) to engage in any transaction, practice, or course of business which operates or would operate as a fraud or deceit upon the purchaser.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also binds the following who receive actual notice of this Final Judgment by personal service or otherwise: (a) Defendants' officers, agents, servants, employees, and attorneys; and (b) other persons in active concert or participation with Defendants or with anyone described in (a).

III.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendants Aras, Gutierrez, Tolentino, Efren Quiroz, and Luis Quiroz are permanently restrained and enjoined from violating Section 5 of the Securities Act [15 U.S.C. § 77e] by, directly or indirectly, in the absence of any applicable exemption:

(a) Unless a registration statement is in effect as to a security, making use of any means or instruments of transportation or communication in interstate commerce or of the mails to sell such security through the use or medium of any prospectus or otherwise;

(b) Unless a registration statement is in effect as to a security, carrying or causing to be carried through the mails or in interstate commerce, by any means or instruments of transportation, any such security for the purpose of sale or for delivery after sale; or

(c) Making use of any means or instruments of transportation or communication in interstate commerce or of the mails to offer to sell or offer to buy through the use or medium of any prospectus or otherwise any security, unless a registration statement has been filed with the Commission as to such security, or while the registration statement is the subject of a refusal order or stop order or (prior to the effective date of the registration statement) any public proceeding or examination under Section 8 of the Securities Act [15 U.S.C. § 77h].

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also binds the following who receive actual notice of this Final Judgment by personal service or otherwise: (a) Defendants Aras's, Gutierrez's, Tolentino's, Efren Quiroz's, and Luis Quiroz's officers, agents, servants, employees, and attorneys; and (b) other persons in active concert or participation with Defendants Aras, Gutierrez, Tolentino, Efren Quiroz, or Luis Quiroz or with anyone described in (a).

IV.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendants Efren Quiroz and Luis Quiroz are permanently restrained and enjoined from violating Section 15(a) of the Exchange Act [15 U.S.C. § 78o(a)] by, while engaging in business as a broker or dealer, making use of the mails or any instrumentality of interstate commerce to effect any transaction in, or to induce the purchase or sale of, any security (other than an exempted security or commercial paper, bankers' acceptances, or commercial bills) unless registered as a broker dealer in accordance with Section 15(b) of the Exchange Act [15 U.S.C. § 78o(b)] or associated with a broker or dealer that is registered with the Commission in accordance with Section 15(b) of the Exchange Act [15 U.S.C. § 78o(b)].

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also binds the following who receive actual notice of this Final Judgment by personal service or otherwise: (a) Defendants Efren Quiroz and Luis Quiroz's officers, agents, servants, employees, and attorneys; and (b) other persons in active concert or participation with Defendants Efren Quiroz or Luis Quiroz or anyone described in (a).

V.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that pursuant to Section 21(d)(5) of the Exchange Act [15 U.S.C. § 78u(d)(5)], Defendants are permanently restrained and enjoined from directly or indirectly, including, but not limited to, through any entity owned or controlled by any Defendant, participating in the issuance, purchase, offer, or sale of any security; provided, however, that such injunction shall not prevent Gutierrez, Tolentino, Rendon, Efren Quiroz, or Luis Quiroz from purchasing or selling securities listed on a national securities exchange for his or her own personal account.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that, as provided in Federal Rule of Civil Procedure 65(d)(2), the foregoing paragraph also binds the following who receive actual notice of this Final Judgment by personal service or otherwise: (a) Defendants' officers, agents, servants, employees, and attorneys; and (b) other persons in active concert or participation with Defendants or with anyone described in (a).

VI.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant Aras is liable for disgorgement, totaling **$448,746**, which represents its ill-gotten gains as a result of the conduct alleged in the Complaint, together with prejudgment interest thereon in the amount of **$129,614**. Defendant Aras shall be jointly and severally liable with Gutierrez for the $448,746 disgorgement and $129,614 in prejudgment interest.

VII.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant Gutierrez is liable for disgorgement, totaling **$448,746**, which represents his ill-gotten gains as a result of the conduct alleged in the Complaint, together with prejudgment interest thereon in the amount of **$129,614**. Defendant Gutierrez shall be jointly and severally liable with Aras for the $448,746 disgorgement and $129,614 in prejudgment interest.

VIII.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant Tolentino is liable for disgorgement, totaling **$974,813**, which represents her ill-gotten gains as a result of the conduct alleged in the Complaint, together with prejudgment interest thereon in the amount of **$281,559**.

IX.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant Rendon is liable for disgorgement, totaling **$187,829**, which represents his ill-gotten gains as a result of the conduct alleged in the Complaint, together with prejudgment interest thereon in the amount of **$54,251**.

X.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant Efren Quiroz is liable for disgorgement, totaling **$243,720**, which represents his ill-gotten gains as a result of the conduct alleged in the Complaint, together with prejudgment interest thereon in the amount of **$70,265**. Defendant Efren Quiroz shall be jointly and severally liable with Defendant Luis Quiroz for $93,270 of the total $243,720 disgorgement amount and for $26,940 of the total $70,265 prejudgment interest amount imposed.

XI.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant Luis Quiroz is liable for disgorgement, totaling **$108,270**, which represents his ill-gotten gains as a result of the conduct alleged in the Complaint, together with prejudgment interest thereon in the amount of **$31,272**. Defendant Luis Quiroz shall be jointly and severally liable with Defendant Efren Quiroz for $93,270 of the total $108,270 disgorgement amount and for $26,940 of the total $31,272 prejudgment interest amount imposed.

XII.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that Defendant Gutierrez is liable for a civil penalty in the amount of **$448,746** pursuant to Section 20(d) of the Securities Act [15 U.S.C. § 77t(d)] and Section 21(d)(3) of the Exchange Act [15 U.S.C. § 78u(d)(3)].

XIII.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that

Defendants shall satisfy these obligations by paying these amounts owed to the SEC within 30 days after entry of this Final Judgment.

Defendants may transmit payment electronically to the SEC, which will provide detailed ACH transfer/Fedwire instructions upon request. Payment may also be made directly from a bank account via Pay.gov through the SEC website at http://www.sec.gov/about/offices/ofm.htm. Defendants may also pay by certified check, bank cashier's check, or United States postal money order payable to the "Securities and Exchange Commission", which shall be delivered or mailed to

Enterprise Services Center
Accounts Receivable Branch
6500 South MacArthur Boulevard
Oklahoma City, OK 73169

and shall be accompanied by a letter identifying the case title, civil action number, and name of this Court; the defendant's respective name in this action; and specifying that payment is made pursuant to this Final Judgment.

Defendants shall simultaneously transmit photocopies of evidence of payment and case identifying information to the SEC's counsel in this action. By making this payment, Defendants relinquish all legal and equitable right, title, and interest in such funds and no part of the funds shall be returned to Defendants.

The SEC may enforce the Court's judgment for disgorgement and prejudgment interest by using all collection procedures authorized by law, including, but not limited to, moving for civil contempt at any time after 30 days following entry of this Final Judgment.

The SEC may enforce the Court's judgment for penalties by the use of all collection procedures authorized by law, including the Federal Debt Collection Procedures Act, 28 U.S.C.

§ 3001 *et seq.,* and moving for civil contempt for the violation of any Court orders issued in this action. Defendants shall pay post judgment interest on any amounts due after 30 days of the entry of this Final Judgment pursuant to 28 U.S.C. § 1961. The SEC shall hold the funds, together with any interest and income earned thereon (collectively, the "Fund"), pending further order of the Court.

The SEC may propose a plan to distribute the Funds subject to the Court's approval. Such a plan may provide that the Funds shall be distributed pursuant to the Fair Fund provisions of Section 308(a) of the Sarbanes-Oxley Act of 2002. The Court shall retain jurisdiction over the administration of any distribution of the Fund, and the Fund may only be disbursed pursuant to an Order of the Court.

Regardless of whether any such Fair Fund distribution is made, amounts ordered to be paid as civil penalties pursuant to this Final Judgment shall be treated as penalties paid to the government for all purposes, including all tax purposes. To preserve the deterrent effect of the civil penalty, Defendants shall not, after offset or reduction of any award of compensatory damages in any Related Investor Action based on Defendants' payment of disgorgement in this action, argue that they are entitled to, nor shall they further benefit by, offset or reduction of such compensatory damages award by the amount of any part of Defendants' payment of a civil penalty in this action ("Penalty Offset"). If the court in any Related Investor Action grants such a Penalty Offset, Defendants shall, within 30 days after entry of a final order granting the Penalty Offset, notify the SEC's counsel in this action and pay the amount of the Penalty Offset to the United States Treasury or to a Fair Fund, as the SEC directs. Such a payment shall not be deemed an additional civil penalty and shall not be deemed to change the amount of the civil penalty imposed in this Final Judgment. For purposes of this paragraph, a "Related Investor

Action" means a private damages action brought against Defendants by or on behalf of one or more investors based on substantially the same facts as alleged in the Complaint in this action.

XIV.

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED that the Consents for Defendants Tolentino, Rendon, Efron Quiroz, and Luis Quiroz. Dkt. Nos. 2, 2-1 (Tolentino Consent); 2-2 (Rendon Consent); 2-3 (Efren Quiroz Consent); and 2-4 (Luis Quiroz Consent) are incorporated herein with the same force and effect as if fully set forth herein, and that Defendants Tolentino, Rendon, Efron Quiroz, and Luis Quiroz shall comply with all of the undertakings and agreements set forth therein, PROVIDED, HOWEVER, that the only provisions of paragraph 13 of each of the Consents that are incorporated herein and with which Defendants Tolentino, Rendon, Efron Quiroz, and Luis Quiroz must comply are the provisions of subparagraph (iv) thereof.

XV.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that, solely for purposes of exceptions to discharge set forth in Section 523 of the Bankruptcy Code, 11 U.S.C. § 523, the allegations in the Complaint are true and admitted by Defendants Tolentino, Rendon, Efren Quiroz, and Luis Quiroz, and further, any debt for disgorgement, prejudgment interest, civil penalty or other amounts due by Defendants Tolentino, Rendon, Efren Quiroz, or Luis Quiroz under this Final Judgment or any other judgment, order, consent order, decree or settlement agreement entered in connection with this proceeding, is a debt for the violation by Defendants Tolentino, Rendon, Efren Quiroz, and Luis Quiroz of the federal securities laws or any regulation or order issued under such laws, as set forth in Section 523(a)(19) of the Bankruptcy Code, 11 U.S.C. § 523(a)(19).

XVI.

IT IS HEREBY FURTHER ORDERED, ADJUDGED, AND DECREED that this Court shall retain jurisdiction of this matter for the purposes of enforcing the terms of this Final Judgment.

SO ORDERED.

SIGNED this 13th day of July, 2026.

KATHLEEN CARDONE
UNITED STATES DISTRICT JUDGE